**IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI**
**COURT-III**

**ITEM No. 319**
**CP.CAA-15(ND)/2023**

**IN THE MATTER OF:**
Valerian Management Services Pvt. Ltd. AND .... Petitioner/Applicant
Grey Fox Project Management Pvt. Ltd.

**Order under Section 230-232 of the Companies Act.**

**Order delivered on 28.08.2023**

**CORAM:**
**SHRI BACHU VENKAT BALARAM DAS**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI ATUL CHATURVEDI**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**
For Applicant : Mr. Sanjay Grover
For the OL : Ms. Hemlata Rawat Adv.
For IT Dept. : Mr. Puneet Rai Sr. Standing Counsel a/w Nikhil Jain

**ORDER**

Heard the submissions made by the Ld. Counsel appearing for the Applicant. The Report filed by the Official Liquidator is on record and it is stated by the Official Liquidator that they have no objection w.r.t. scheme.

Mr. Puneet Rai, Sr. Standing Counsel appearing for the Income Tax Department has pointed out that there is a demand of Rs. 58,117/- (Fifty Eight Thousand One Hundred Seventeen Rupees Only) on the Transferor Company No. 1. He, therefore, submits that the Applicant be directed to file an undertaking stating therein that the Transferee Company will pay all the demands of the Transferor Company, if any. Ld. Counsel for the Applicant has submitted that the Applicant has filed a response to the report filed by the Income Tax Department wherein it has been stated that the Income Tax demands will be paid by the Transferee Company.

Ld. Counsel for the Applicant shall serve a copy of the said affidavit on Mr. Puneet Rai, Sr. Standing Counsel appearing for the Income Tax Department during the course of the day to enable him to take instructions from the department.

The report filed by the RD is taken on record wherein certain observations have been made. The Applicant shall file response to the said observations within one week.

Further the Applicant is directed to file an undertaking by way of an affidavit with regard to the payment of Income Tax Demands.

List the matter for arguments **on 16.10.2023.**

-Sd-
**(ATUL CHATURVEDI)**
**MEMBER (TECHNICAL)**

-Sd-
**(BACHU VENKAT BALARAM DAS)**
**MEMBER (JUDICIAL)**

**ANAND DUBEY**